



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and
Hazardous
Materials Safety
Administration**

SEP 21 2005

Dear Holders of DOT-E 10798:

Enclosed is the 21st revision of DOT-E 10798. Please note that the exemption was modified, in accordance with a modification application submitted by a party to the exemption, to add a hazardous material to the list of authorized materials in paragraph 6 of the exemption. The material that was added is "Organometallic substance, liquid, pyrophoric, water-reactive (lithium alkyls in hydrocarbon solvents)". The addition of this material corresponds to similar changes in the UN Recommendations. If you have questions concerning this modification, please contact Ryan Posten of my staff at (202) 366-4535.

Sincerely,

Delmer F. Billings
Director

Office of Hazardous Materials
Exemptions and Approvals



U.S. Department
of Transportation

**Pipeline and
Hazardous
Materials Safety
Administration**

400 Seventh Street, S.W.
Washington, D.C. 20590

SEP 21 2005

DOT-E 10798
(TWENTY-FIRST REVISION)

EXPIRATION DATE: October 31, 2006

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Arch Chemicals, Inc.
(FORMER GRANTEE: Olin Corporation)
Norwalk, Connecticut

(See Appendix A to this document for a list of additional grantees)

2. PURPOSE AND LIMITATION:

a. This exemption authorizes tank cars, containing hazardous materials identified in paragraph 6, to remain standing with unloading connections attached when no product is being transferred, provided that a minimal level of monitoring, as specified in this exemption is maintained. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.

b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.302(c) in that marking the exemption number on the tank is waived; and § 174.67(i) and (j).
5. BASIS: This exemption is based on application of Arch Chemicals, Inc., dated December 21, 2004, submitted in accordance with § 107.109.

5. HAZARDOUS MATERIALS (49 CFR § 172.101):

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Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	ID Number	Packing Group
1-Hexene	3	UN2370	II
Acetic acid, glacial or Acetic acid solution, with more than 80 percent acid by, mass	8	UN2789	II
Acrylonitrile, stabilized	3	UN1093	I
Allyl chloride	3	UN1100	I
Ammonia, anhydrous	2.2	UN1005	N/A
Arsenical pesticide, liquid, toxic (arsenic pentoxide, chromic acid)	6.1	UN2994	II
Benzene	3	UN1114	II
Butanols	3	UN1120	II
Chlorine	2.3	UN1017	N/A
Chromic acid solution	8	UN1755	II
Combustible liquid, n.o.s. (Contains hexanol, octanal, decanol)	Combust- ible liquid	NA1993	III
Cyclohexane	3	UN1145	II
Dimethyl sulfide	3	UN1164	II
Dimethylamine, anhydrous	2.1	UN1032	N/A
Epichlorohydrin	6.1	UN2023	II
Ethanolamine solutions	8	UN2491	III
Ethylene, refrigerated liquid (cryogenic liquid)	2.1	UN1038	N/A
Ethylene oxide or Ethylene oxide with nitrogen up to a total pressure of 1MPa (10bar) at 50 degrees C	2.3	UN1040	N/A

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Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	ID Number	Packing Group
Ferric Chloride Solution	8	UN2582	III
Hexamethylene diisocyanate	6.1	UN2281	II
Hexanes	3	UN1208	II
Hydrochloric acid	8	UN1789	II, III
Hydrogen chloride, refrigerated liquid	2.3	UN2186	N/A
Isophorone diisocyanate	6.1	UN2290	III
Liquefied Petroleum Gas or Petroleum gases, liquefied	2.1	UN1075	N/A
Lithium alkyls	4.2	UN2445	I
Methanol	3	UN1230	II
Methylamine, anhydrous	2.1	UN1061	N/A
n-Propanol or Propyl alcohol, normal	3	UN1274	II
Organometallic substance, liquid, pyrophoric, water- reactive (Lithium alkyls in hydrocarbon solvents)	4.2	UN3394	I
Petroleum distillates, n.o.s. or Petroleum products, n.o.s.	3	UN1268	III
Potassium hydroxide solution	8	UN1814	II
Propane or Petroleum gases, liquefied	2.1	UN1978	N/A
Propionaldehyde	3	UN1275	II
Propionic acid	8	UN1848	III
Propylene oxide	3	UN1280	I
Sodium hydroxide solution	8	UN1824	II

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Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	ID Number	Packing Group
Sulfur dioxide	2.3	UN1079	N/A
Sulfuric acid, with more than 51 percent acid	8	UN1830	II
Toluene diisocyanate	6.1	UN2078	II
Vinyl acetate, stabilized	3	UN1301	II
Waste flammable liquid, n.o.s.	3	UN1993	II

7. SAFETY CONTROL MEASURES:

- a. Packagings prescribed are DOT specification tank cars authorized for the material specified meeting all DOT specification requirements.
- b. Any manually operated switch, under the proprietary control of the exemption holder, providing access to the track on which the equipment is located must be lined against movement to that track and locked with an effective locking device operable only by a representative of the facility.
- c. The facility operator must install a bi-directional derail in an effective location (at least 50 feet when possible) from the end of the equipment to be protected by the caution sign. The person performing the unloading operation with lock the device in the derailing position with an effective locking device operable only by a representative of the facility.
- d. The facility operator must designate an employee responsible for on-site monitoring of the transfer facility in the absence of the unloader. The designated employee must be made familiar with the nature and properties of the product contained in the tank car, procedures to be followed in the event of an emergency; and, in the event of an emergency, have the ability and authority to take responsive actions.
- e. When a signaling system is used (including a monitoring system or a sensing device), the system must be capable of alerting the designated employee in the event of an emergency and providing immediate notification of any

monitoring system malfunction. If the monitoring system does not have self-monitoring capability, the designated employee must check the monitoring system hourly for proper operation. (For recommendations on the selection, installation and maintenance of signaling systems see NFPA 72 - Installation, Maintenance and Use of Protective Signaling Systems.)

f. In the absence of the unloader:

- (1) the tank car and facility shutoff valves must be secured in the closed position;
- (2) no product may be transferred; and
- 3) the requirements of § 174.67(a)(2) and (3) apply.

g. The transfer facility shutoff valve must be located as close as practicable to the point of connection between the transfer system and the tank car and in a manner that will minimize the release of product in the event of hose rupture or separation. The facility operator must take appropriate steps to prevent rupture of transfer hoses due to product expansion (i.e., liquid expansion chambers or hoses with an increased minimum burst pressure rating.)

8. SPECIAL PROVISIONS:

a. The facility operator must have written safety procedures on file at each location that uses this exemption. The facility operator must instruct each employee performing any function under this exemption on the contents of these procedures and ensure compliance with them. The written procedures must contain at least the following:

- (1) A physical description of the facility including the address and hours of operation.
- (2) A drawing of the transfer facility showing natural and manmade barriers, locations of protective equipment (i.e., derail and caution sign), locations of emergency equipment and locations of signaling equipment.
- (3) Procedures for monitoring the transfer facility [see paragraphs 7(a) and (b)].

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- (4) Information on the contents of the tank car including:
 - (i) chemical or common name of the product
 - (ii) health and physical hazards involved in handling the product
 - (iii) emergency and first aid procedures
- (5) Procedures for securing the transfer facility and protective equipment including derail, switch locks, tank car brakes, caution sign and wheel blocks.
- (6) Equipment available for employee safety and procedures for using the equipment.
- (7) Procedures and limitations for movement of tank cars in the vicinity of the transfer facility.
- (8) Testing and maintenance of system components including signaling systems.
- (9) Training requirements for designated employees responsible for monitoring the transfer facility.
- (10) Procedural steps in the event of an emergency, including names and phone numbers of key personnel and public agencies to contact.
- (11) Procedures for reviewing incidents to determine whether the written procedures require revision or modification to prevent future occurrences and amending those procedures when the review necessitates changes.

b. The facility operator must have on file, at each location using this exemption, a current copy of the Chlorine Institute Manual and the Chlorine Institute's Pamphlets 6, 57 and 66 for information on employee training and safety, emergency measures and recommended procedures for the installation of piping systems and emergency shut off facilities.

c. The facility operator must establish and maintain liaison with fire, police and other appropriate public officials to learn the responsibilities and resources of each governmental agency that may be called upon to respond

to an emergency involving the tank car and transfer facility and acquaint the officials with the facility's capabilities and procedures in the event of an emergency.

d. The marking requirements in § 172.302 are waived.

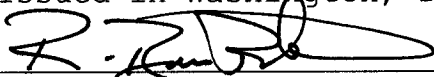
9. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.
10. MODAL REQUIREMENTS: None as a requirement of this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this exemption must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The holder of this exemption must inform the Associate Administrator for Hazardous Materials Safety, in writing, of any incidents involving inadvertent release of the hazardous material during operations conducted under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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(DATE)

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: AM

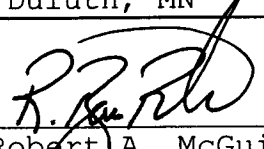
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The following are hereby granted party status to this exemption based on their application(s) submitted in accordance with § 107.107 or § 107.109, as appropriate:

Company Name City/State	Application Date	Issue Date	Expiration Date
Afton Chemical Corporation Richmond, VA	Dec 20, 2004	Apr 18, 2005	Oct 31, 2006
Albemarle Corporation Baton Rouge, FL	Dec 6, 2004	Jan 24, 2005	Oct 31, 2006
BASF Corporation Mount Olive, NJ	Jan 25, 2005	Feb 18, 2005	Oct 31, 2006
Brenntag Mid-South, Inc. Henderson, KY	Jan 4, 2005	Jan 24, 2005	Oct 31, 2006
Brenntag Pacific, Inc. Santa Fe Springs, CA	Jun 29, 2005	Jul 26, 2005	Oct 31, 2006
Brenntag Southwest Inc. Sand Springs, OK	Dec 20, 2004	Jan 24, 2005	Oct 31, 2006
Chemetall Foote Corporation Kings Mountain, NC	Dec 20, 2004 & Jul 26, 2005	SEP 21 2005	Oct 31, 2006
Clearon Corporation South Charleston, WV	Dec 20, 2004	Jan 24, 2005	Oct 31, 2006
Equistar Chemical, LP Houston, TX	January 3, 2005	Jan 24, 2005	Oct 31, 2006
Ethyl Corporation Richmond, VA	Dec 20, 2004	Jan 24, 2005	Oct 31, 2006
GAC Chemical Corporation Searsport, ME	Dec 29, 2004	Jan 24, 2005	Oct 31, 2006
GAC MidAmerica, Inc. Toledo, OH	Dec 15, 2004	Jan 4, 2005	Oct 31, 2006
Kuehne Chemical Company, Inc. South Kearny, NJ	Jan 10, 2005	Jan 24, 2005	Oct 31, 2006
Lyondell Chemical Co. Houston, TX	Jan 3, 2005	Jan 24, 2005	Oct 31, 2006
Millennium Inorganic Chemicals, Inc., Houston, TX	Jan 3, 2005	Jan 24, 2005	Oct 31, 2006
Niacet Corporation Niagara Falls, NY	Dec 20, 2004	Jan 24, 2005	Oct 31, 2006

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Company Name City/State	Application Date	Issue Date	Expiration Date
Nalco Company (Former Grantee: ONDEO Nalco Co.) Naperville, IL	Dec 20, 2004	Jan 24, 2005	Oct 31, 2006
OnLine Packaging, Inc. Plover, WI	Nov 30, 2004	Dec 17, 2004	Oct 31, 2006
OnLine Packaging, Inc. Michigan City, IN	Mar 21, 2005	Apr 18, 2005	Oct 31, 2006
Olin Corporation Charleston, TN	Dec 27, 2004	Jan 24, 2005	Oct 31, 2006
Peak Sulfur, Inc. Lenexa, KS	Jan 11, 2005	Feb 18, 2005	Oct 31, 2006
Schweitzer-Mauduit International, Inc. Spotswood, NJ	Dec 27, 2004	Jan 24, 2005	Oct 31, 2006
Sentry Industries Inc. Miami, FL	Nov 4, 2004	Nov 23, 2004	Oct 31, 2006
Sewerage & Water Board of New Orleans New Orleans, LA	Jan 26, 2005	Feb 18, 2005	Oct 31, 2006
Western Lake Superior Sanitary District Duluth, MN	Oct 28, 2004	Nov 23, 2004	Oct 31, 2006


Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety